

RODNEY SMITH vs. CITY OF FAIRFIELD
Case No. CU24-05394

Motion for Judgment on the Pleadings filed by Defendant CITY OF FAIRFIELD

TENTATIVE RULING

The motion for judgment on the pleadings filed by CITY OF FAIRFIELD is granted without leave to amend.

The complaint is not entirely clear as to whether plaintiff's cause of action for conversion is based on the impoundment of his vehicle on December 7, 2022, or the CITY'S subsequent denial of his claim for reimbursement of the costs he incurred due to the impoundment. The complaint makes no allegation that the impoundment of the vehicle was wrongful. Therefore, if there is any conversion to be alleged, it would have to be based on the CITY'S refusal to reimburse plaintiff.

Plaintiff seeks reimbursement of \$2,464.00 that he paid for the towing and storage of his vehicle, \$280.00 that he paid to the police, and \$1,593.98 that he paid for a rental car for two days while his car was impounded. However, Vehicle Code Section 23109.2(e)(4) and (6) provides authority for the reimbursement of towing and storage fees only. It does not provide authority for reimbursement of plaintiff's payments to the police or his payments for a rental car. Thus, at best, plaintiff may only claim the CITY wrongfully refused to reimburse plaintiff \$2,464.00.

Generally, a cause of action for conversion is based on the wrongful exercise of personal property by another. (See CACI 2100). A dispute over money owed may give rise to a claim for conversion only in limited circumstances. (*Voris v. Lampert* (2019) 7 Cal.5th 1141 and *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267 cited therein). A cause of action for conversion may be based on money only "where a defendant interferes with the plaintiff's *possessory interest* in a specific, identifiable sum, such as when a trustee or agent misappropriates the money entrusted to him" or "unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment." (*Kim v. Westmoore Partners, Inc.*, *supra*, at p.284). No such circumstances have been or could be alleged in the present case. Therefore, the complaint does not and cannot state facts sufficient to constitute a cause of action for conversion.

The complaint does not identify a specific statute upon which it seeks to impose liability on the part of the CITY, as required to state a cause of action against a public entity. Government Code Section 815.2 could impose liability on the part of the CITY for a tort committed by its employees. However, as the court already indicated, the complaint does not state facts sufficient to constitute a cause of action for conversion or any other tort committed by an employee of the CITY. Therefore, Government Code Section 815.2 does not apply in this case.

Given that the court finds no cause of action for conversion has been or may be stated against the CITY, the contentions regarding the timeliness of plaintiff's claim with the CITY are moot.

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